

Mansood Ahmad v. Purvanchal Vidhut Vitarana Nigam

Allahabad High Court · Division Bench · 30 August 2022 · Writ-C No. 21424 of 2022 · Writ-C No. 21424 of 2022 · **Writ disposed of; respondent no.2 to decide the 14.06.2022 objection under Para-6.8 preferably within four weeks after hearing, without opinion on merits.**

HEADNOTE

Allahabad High Court disposed of a mandamus to decide a 14.06.2022 representation under Clause 8.1 of the U.P. Electricity Supply Code, 2005, after both sides jointly stated that the objection lay under Para-6.8. Without opinion on merits, respondent no.2 was directed to decide that objection under Para-6.8 expeditiously, preferably within four weeks, after reasonable opportunity of hearing.

FACTUAL SUMMARY

Mansood Ahmad petitioned the Allahabad High Court against Purvanchal Vidhut Vitarana Nigam and another for a mandamus that respondent no.2 decide his statutory representation dated 14 June 2022 within a fixed time, strictly under Clause 8.1 of the U.P. Electricity Supply Code, 2005. Counsel for both sides jointly stated that the 14 June 2022 objection or representation was under Para-6.8 of the Supply Code, 2005, not Clause 8.1 as prayed.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

time-bound disposal of pending Para-6.8 objection

HOLDING

On a joint statement that the petitioner's 14.06.2022 representation was an objection under Para-6.8 of the U.P. Electricity Supply Code, 2005, the Court, without expressing any opinion on merits, directed respondent no.2 to decide that objection expeditiously, preferably within four weeks of a certified copy of the order with the objection, after affording reasonable opportunity of hearing. ¶ 1

PRINCIPLE TAGS

para-6.8-objection-alternate-remedy Writ seeking a time-bound decision of a representation pleaded under Clause 8.1 was disposed of on the parties' joint statement that the objection lay under Para-6.8, directing the licensee to decide it after hearing and without a merits determination. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE 14.06.2022 OBJECTION/REPRESENTATION

Disposed of without expressing any opinion on merits. ¶ 1

NOT DECIDED — WHETHER CLAUSE 8.1 OR PARA-6.8 GOVERNED THE REPRESENTATION

Court proceeded on the parties' joint statement that the objection lay under Para-6.8, without deciding the pleaded Clause 8.1 basis. ¶ 1